

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573

Docket No. 25-02

NIELSEN & BAINBRIDGE, LLC,
Complainant,

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC #011982), EVERGREEN
MARINE CORPORATION (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SpA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN
MARINE (SINGAPORE) PTE. LTD., AND YANG MING MARINE TRANSPORT
CORPORATION,
Respondents.

**COMPLAINANT'S MOTION FOR LEAVE TO COMPLETE FACT WITNESS
DEPOSITIONS BEFORE THE CLOSE OF DISCOVERY, OR, IN THE ALTERNATIVE,
FOR LEAVE TO PROCEED BY WRITTEN QUESTIONS**

Complainant Nielsen & Bainbridge, LLC (“NBG” or “Complainant”), by its undersigned counsel and pursuant to 46 C.F.R. §§ 502.12, 502.69, 502.71, and 502.102, respectfully moves for leave to complete the depositions of two former NBG employees—Panadda White and Diana Castro—before the October 2, 2026 close of discovery set in the Third Amended Scheduling Order. In the alternative, NBG moves for leave to depose by written questions, under 46 C.F.R. § 502.144(a)(1), any of the three witnesses who cannot be deposed orally, including Albert Josiah, who was previously subpoenaed and scheduled for a deposition. NBG does not ask the Presiding Officer to revisit the September 11, 2026 Order Denying Complainant’s Fourth Motion to Extend Deadlines; NBG brings this Motion because the circumstance that Order identified as fatal to the Fourth Motion to Extend Deadlines no longer exists. In support of this Motion, NBG states as follows:

I. Background

1. On July 20, 2026, the Presiding Officer entered the Third Amended Scheduling Order, setting August 26, 2026 as the deadline to complete depositions of fact witnesses and October 2, 2026 as the close of discovery, among other deadlines. *See* Third Am. Scheduling Order.
2. On August 26, 2026, NBG filed Complainant's Fourth Motion to Extend Deadlines ("Fourth MTE"), seeking a four-week extension of each deadline in the Third Amended Scheduling Order because three former NBG employees — Albert Josiah, Panadda White, and Diana Castro — had not been available for deposition. Fourth MTE at ¶¶ 5-6, 10.
3. Respondents Evergreen Line Joint Service Agreement, Evergreen Marine Corporation (Taiwan) Ltd., Evergreen Marine (UK) Limited, Italia Marittima SpA, Evergreen Marine (Hong Kong) Ltd., Evergreen Marine (Singapore) Pte. Ltd. (collectively, "Evergreen"), and Yang Ming Marine Transport Corporation ("Yang Ming," and together with Evergreen, "Respondents") opposed the Fourth MTE. The Opposition established, and the Presiding Officer found, that the subpoenas compelling the three witnesses' attendance had been served by Respondents, not by NBG. Order Denying Complainant's Fourth Motion to Extend Deadlines ("Order") at 1.
4. The Presiding Officer further found that Respondents "stated at the status conference that they will not pursue enforcement of the subpoenas, and they no longer wish to depose the three former NBG employees." Order at 1.
5. On that basis, the Presiding Officer held that "[b]ecause NBG did not subpoena the three witnesses to testify, it has no standing to seek enforcement of the subpoenas, nor did it move to do so... because NBG cannot enforce Respondents' subpoenas, and

Respondents refuse to do so, good cause has not been established to extend the deadlines.” Order at 2. The Fourth MTE was accordingly denied. Order at 2.

II. NBG Has Cured the Circumstance the Order Identified

6. NBG does not ask the Presiding Officer to revisit that ruling. The Order turned on NBG’s inability to compel the three witnesses’ attendance through subpoenas NBG had no standing to enforce, and on Respondents’ unwillingness to enforce those same subpoenas themselves. Order at 2. NBG has since removed that obstacle without resort to enforcement of any subpoena at all.
7. NBG now respectfully seeks to take the depositions of two former NBG employees, Diana Castro and Panadda White, prior to the October 2, 2026 close of discovery, and is actively seeking to finalize availability of those witnesses in that time.
8. Because the depositions described above fall on or before October 2, 2026, granting this Motion requires no change to the close of discovery or to any deadline sequenced from it. *By securing these depositions, NBG will have cured the very defect the Order identified*, and it accordingly does not renew its request for a blanket four-week extension of the schedule; it asks only for leave to complete two depositions within the discovery period that already exists.

III. The Testimony Is Necessary, and No Other Source Can Supply It

9. Mr. Josiah, Ms. White, and Ms. Castro are the only former NBG employees who dealt directly, in the ordinary course of NBG’s transportation department, with Evergreen and Yang Ming, and who can testify from personal knowledge to how Respondents behaved toward NBG. *See* Fourth MTE ¶¶ 4, 7. Absent their testimony, *the record will contain no testimony from any NBG employee regarding the actual behavior of*

Evergreen or Yang Ming; it will contain only Respondents' own documents and correspondence describing that behavior.

10. That gap matters because proceedings before the Commission generally do not engage in live hearings and the status quo will permit Respondents to cite to voluminous record testimony from their employees without such testimony from NBG—all despite NBG's consistent and repeated efforts to secure and schedule depositions to take such testimony. Respondents represented to the Presiding Officer that “emails and other documents produced in discovery provide the information they sought,” Order at 1–2, but that representation describes *Respondents'* own evidentiary needs for their defense; it does not supply the testimony NBG requires to prove its affirmative case through witnesses with first-hand knowledge of Respondents' conduct.
11. NBG had previously anticipated seeking this critical testimony at the conclusion of each former employee deposition sought by Respondents. NBG's counsel and Respondent's counsel have, over the course of many years in other related matters before the Commission, always relied on a single party obtaining subpoenas and have never had both parties seek their own subpoena for one witness.
12. This has also been the standard practice between NBG's counsel and other litigants in front of the Commission.
13. As a bankrupt entity, NBG no longer has any authority over the three witnesses. Any previous issues with the scheduling and taking of the former-employee depositions was thus outside of NBG's control and despite consistent efforts by NBG to secure such testimony in a collaborative manner with counsel for Respondents.

IV. The Parties Worked Collaboratively to Schedule Depositions and Accommodate Schedules, and Respondents Did Not Disclose Their Intent to Not Seek Testimony from the Witnesses Until Immediately before Deposition Deadline

14. In the weeks preceding the fact witness deposition deadline, counsel for Complainant and Respondent communicated regularly to schedule all of the witnesses subpoenaed for this proceeding, including current employees of Yang Ming and Evergreen, and former employees of Yang Ming, Evergreen, and NBG. In continuance of that conversation, on August 20, 2026, Complainant's attorney Sahana Thirumazhusai emailed Respondents' attorney Edward Keane regarding the Evergreen witnesses as well as the NBG witnesses. Regarding the NBG witnesses, she wrote: "We are asking the NBG witnesses for availability into mid-late September given the schedule and we may need to seek a limited extension to accommodate the timing required to take all depositions." Edward Keane responded on the same day that "I am only responding to the schedule of the EVG witnesses for Aug 25-27," and did not address the NBG witness issue.
15. At the time, counsel had mutually already agreed to depositions after the August 26, 2026 deadline with the understanding that the parties would take those depositions without seeking to move any other dates within the Scheduling Order: the deposition of Rodney Bledsoe of August 27, 2026, the deposition of Hunter Bailey on August 28, 2026, and the deposition of corporate representative Brad Scher on September 2, 2026.
16. On August 21, 2026, Complainant's attorney Mohini Priya wrote to Edward Keane: "Are you available on Monday 8/24 to meet and confer on the schedule for the NBG v. YM and Evergreen case? Also, we can cancel the Rodney Bledsoe deposition on 8/27, but we will keep the others on 8/25, 26, and 28." Edward Keane responded on the

- same day: “I am meeting with Dallas witnesses on Monday. If we finish up before 5pm I will let you know and we can meet then. Otherwise, after Tuesday deposition.”
17. On Tuesday evening, August 25, 2026, after the deposition mentioned above, Complainant’s attorney Luke Rushing wrote to Edward Keane: “I wanted to get your proposal on how to handle the end of the deposition period. I know you mentioned potentially not taking depositions from the remaining witnesses you had previously indicated. Let us know what you’re thinking, as I said we would join an extension to allow you to take additional depositions.”
 18. Edward Keane responded the same evening of August 25, 2026: “My view is the NBG ex-employees who were subpoenaed or could not be subpoenaed and have not given depositions should simply be out of the case. No evidence for either side.”
 19. *Thus, on August 20th, NBG’s counsel informed Respondent’s counsel that an extension would be necessary (see ¶ 14) but Respondent’s counsel did not confirm for five more days—the day before the fact witness deposition deadline—that they would not follow through on their subpoenas and thus NBG would need separate subpoenas. Up until that point, it was mutually understood through years of practicing across from each other that only Respondent’s subpoena was necessary in order for NBG to secure the testimony of these witnesses (see ¶¶ 11-12).*
 20. Luke Rushing then emailed: “Understood, and we’re taking it under advisement to get you an answer right away. When you say ‘no evidence’, do you mean no newly generated affidavits, etc? But already-produced, contemporaneous documents with those people would still be usable? Let me know what you think, thanks!” Edward Keane responded: “Yes. That is my view as well.”

21. The next morning, August 26, 2026, Luke Rushing wrote back: “After speaking with the team, we can’t agree to forego written and oral testimony from those witnesses. If no extension is sought, we understand the rules to permit us to use written testimony. If an extension is sought, we’re happy to join it or even take the lead in drafting it. If there’s another option you can think of (like using affidavits with some other way for you to challenge them) we’d be happy to discuss anything. Since today is the last day for depositions, let me know what you think as soon as able. If we are going to seek an extension we should do so today. Thanks and apologies for the back and forth - I hope we are able to find an agreeable solution.”
22. That afternoon, Edward Keane responded: “If your firm wishes to request an extension of discovery, to see the witnesses subpoenaed and who did not appear, to do so that is fine. If not we will take the position they are not allowed to flout the subpoenas served and still offer testimony.”
23. Later the same afternoon, Luke Rushing provided a copy of the proposed motion to Edward Keane and Garth Wolfson. He then filed with the Federal Maritime Commission that evening.
24. Until that point, and in the days following regarding other witnesses, the Parties treated the deadline as flexible by mutual agreement. The Parties by mutual agreement proceeded with three depositions after the fact-deposition deadline had already passed. In addition to counsel for Complainants deposing former Evergreen employee Hunter Bailey on August 28, 2026, counsel for Respondents deposed NBG’s corporate representative on September 2, 2026 — six days after the August 26, 2026 deadline — “pursuant to agreement of the Parties.” Fourth MTE at 5 n.1.

25. Because there was a five-day gap between the Respondents learning that an extension would be needed and Respondents abandoning their subpoenas, thereby leaving NBG without a subpoena on which to base its motion for an extension, and because the course of conduct between the counsel in this matter has always been to have only one subpoena for each witness,¹ it would be an unfair prejudice to NBG to go without the testimony of witnesses which it always diligently sought.

V. In the Alternative, NBG Requests Leave To Depose by Written Questions

26. Commission Rule 144(a)(1) provides that “[a] party may, by written questions, depose any person, including a party, without leave of the presiding officer except as provided in paragraph (a)(2) of this section.” 46 C.F.R. § 502.144(a)(1).
27. In opposing the Fourth MTE, Respondents took the position that a witness’s failure to respond to a subpoena forecloses that witness’s testimony by written question as well, citing *Perdue Farms, Inc. v. NLRB*, 144 F.3d 830, 835 (D.C. Cir. 1998). *See* Order at 2. NBG does not share, and does not concede, that view, *see* Fourth MTE ¶ 13, but rather than litigate the question in the abstract, NBG requests that, if oral depositions of Ms. White, or Ms. Castro cannot be completed, the Presiding Officer grant NBG leave to depose the unavailable witness or witnesses by written questions under Rule 144(a)(1). NBG also requests that the Presiding Officer grants NBG leave to depose Albert Josiah by written questions or via live testimony due to pre-arranged international travel.

VI. Conferral

¹ NBG does not argue that the practice of ‘one subpoena per witness’ be codified as a rule, and will begin to seek their own subpoenas where necessary. NBG merely argues that it would be unfair to penalize it for practicing a course of conduct that had always been approved by opposing counsel.

28. Pursuant to Rule 71(a), counsel for NBG conferred with counsel for Respondents on this issue on September 17, 2026. Opposing counsel informed NBG on September 18, 2026 that they oppose the motion.

VII. Conclusion

29. WHEREFORE, NBG respectfully requests that the Presiding Officer enter an order:
- (a) granting NBG leave to complete the depositions of Panadda White and Diana Castro, without altering the October 2, 2026 close of discovery or any other deadline in the Third Amended Scheduling Order; or (b) in the alternative, granting NBG leave to depose by written questions, under 46 C.F.R. § 502.144(a)(1), Panadda White, Diana Castro and Albert Josiah if they cannot be deposed orally.

Dated: September 21, 2026

Respectfully submitted,

HUTH REYNOLDS LLP

/s/ Joshua Luke Rushing

Joshua Luke Rushing

(202) 420-9628

lrushing@huthreynolds.com

Karl C. Huth

(212) 731-9333

huth@huthreynolds.com

Matthew J. Reynolds

(646) 872-9353

reynolds@huthreynolds.com

Sahana Thirumazhusai

(703) 307-3822

sthirumazhusai@huthreynolds.com

Mohini P.B. Rarrick

(818) 235-9753

mpriya@huthreynolds.com

Gregory A. Crapanzano II

(917) 575-3440

gcrapanzano@huthreynolds.com

41 Cannon Court

Huntington, NY 11743
*Counsel for Complainant Nielsen &
Bainbridge, LLC*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document upon all parties of record in this proceeding by electronic mail, in accordance with 46 C.F.R. §§ 502.114 and 502.117, as follows:

Edward A. Keane
ekeane@mahoneykeane.com
Garth S. Wolfson
gwolfson@mahoneykeane.com
MAHONEY & KEANE, LLP
40 Worth Street, Suite 602
New York, New York 10013

Counsel for Respondents Evergreen Line et al. and Yang Ming Marine Transport Corporation

Dated: September 21, 2026

/s/ Joshua Luke Rushing
Joshua Luke Rushing
HUTH REYNOLDS LLP